

STATE OF NEW YORK

8645--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 22, 2025

Introduced by M. of A. DeSTEFANO -- read once and referred to the Committee on Governmental Employees -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT relating to disability retirement benefits for deputy sheriff Richard Stueber, a participant in World Trade Center rescue, recovery, and cleanup operations

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Notwithstanding the provision of any general or special
2 law, rule or regulation to the contrary, Richard Stueber, a deputy sher-
3 iff employed by Suffolk County who retired from such service on March 1,
4 2019, and who participated in the World Trade Center rescue, recovery
5 and cleanup operations as a member of the New York City police depart-
6 ment, and is now deceased succumbing to mental illness associated with
7 his participation in the World Trade Center rescue, recovery and cleanup
8 operations, and Stacie Stueber on behalf of her deceased husband shall
9 be entitled to a 75% accidental disability retirement benefit pursuant
10 to paragraph 4 of subdivision d of section 605 of the retirement and
11 social security law based upon the determination by the New York state
12 and local employees' retirement system on March 12, 2020 that Richard
13 Stueber was permanently incapacitated for the performance of his duties
14 as a result of his participation in the World Trade Center rescue,
15 recovery, or cleanup operations. Such benefit shall be payable from the
16 date of his retirement.

17 § 2. All costs associated with implementing this act shall be borne by
18 the county of Suffolk.

19 § 3. This act shall take effect immediately.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

This bill would provide Stacie Stueber, the surviving spouse of Richard Stueber, formerly a deputy sheriff employed by Suffolk County, with

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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an accidental disability retirement benefit equal to 75% of the decedent's final average salary, retroactive to the date of retirement. Currently, Stacie Stueber is eligible to receive the continuance of a Pop-Up Joint Allowance 75%, resulting from the decedent's service retirement.

If this bill is enacted during the 2025 Legislative Session, there will be an immediate past service cost of approximately \$1.04 million which will be borne by Suffolk County as a one-time payment. This estimate assumes that payment will be made on March 1, 2026.

Summary of relevant resources:

Membership data as of March 31, 2024 was used in measuring the impact of the proposed change, the same data used in the April 1, 2024 actuarial valuation. Distributions and other statistics can be found in the 2024 Report of the Actuary and the 2024 Annual Comprehensive Financial Report. The actuarial assumptions and methods used are described in the 2024 Annual Report to the Comptroller on Actuarial Assumptions, and the Codes, Rules and Regulations of the State of New York: Audit and Control. The Market Assets and GASB Disclosures are found in the March 31, 2024 New York State and Local Retirement System Financial Statements and Supplementary Information.

This fiscal note does not constitute a legal opinion on the viability of the proposed change nor is it intended to serve as a substitute for the professional judgment of an attorney.

This estimate, dated June 8, 2025, and intended for use only during the 2025 Legislative Session, is Fiscal Note No. 2025-126 Revised. As Chief Actuary of the New York State and Local Retirement System, I, Aaron Schottin Young, hereby certify that this analysis complies with applicable Actuarial Standards of Practice as well as the Code of Professional Conduct and Qualification Standards for Actuaries Issuing Statements of Actuarial Opinion of the American Academy of Actuaries, of which I am a member.